

In re: Rose E. Treise Trust, 17PR-0109

Hearing: Motion for Attorneys' Fees

Date: September 23, 2026

TENTATIVE RULING

Sandra Natali (Petitioner) and Terry R. Mathis filed this trust litigation and a related probate proceeding¹ to remove and surcharge Kim Marie Martel (Respondent) as administrator of the Estate of Carl J. Treise and as successor trustee of the Trust. On March 18, 2026, the Court entered its Statement of Decision and Judgment in favor of Petitioner. On May 15, 2026, Petitioner filed a Motion for Attorneys' Fees (Motion) along with a supporting Declaration of Jonas Bailey (Bailey Declaration). The proof of service for the moving papers is attached to the Bailey Declaration, meaning when served, the notice of motion did not include the hearing information which is assigned by the Clerk's Office at the time of filing. (Cal. Rules of Court, rule 3.1110(b); Local Rule 7.05.1.)

Further, the proof of service indicates Respondent, who is representing herself, was served by email. Electronic service on a self-represented litigant is prohibited under California Rules of Court, rule 2.251(c)(3)(B), unless the self-represented party has "affirmatively consent[ed] to electronic service." The Court notes that Respondent may serve parties who are represented by legal counsel electronically and does not consent to electronic service by doing so.

Petitioner filed a Notice of Hearing on September 1, 2026, indicating Respondent was served by mail. However, this service does not comply with Code of Civil Procedure section 1005, subdivision (b), in that it is less than 16 court days prior to the hearing and an additional five days for mailing or two days for electronic service is also required.

No opposition to the Motion has been filed and Judge Coates, who presided over most of the proceedings in this and the related action, is not available on September 23, 2026. Generally, the trial judge who presides over a matter is in the best position to evaluate whether the time expended by counsel in the case was reasonable. (*Los Angeles Unified Sch. Dist. v. Torres Constr. Corp.* (2020) 57 Cal.App.5th 480, 516.)

Accordingly, the Motion is continued to October 28, 2026, at 9:00 a.m. Mr. Bailey is directed to provide timely notice of the continued hearing in compliance with the statutes cited above. Any party opposing the Motion should file written opposition at least nine court days before the hearing.

¹ In re *Estate of Carl J. Treise*, San Luis Obispo County Superior Court, Case No. PR040209 (Estate Action).